

SENATE BILL 1735

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 47,
relative to consumer protection.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 47-18-107(a), is amended by deleting "The assurance shall be in writing and shall be filed with and subject to the approval of the circuit or chancery court of Davidson County."

SECTION 2. Tennessee Code Annotated, Section 47-18-104(b), is amended by deleting subdivision (43) and substituting:

(43) The act or practice of directly or indirectly:

(A) Making representations that a person will pay or reimburse for a motor vehicle traffic citation for any person who purchases a device or mechanism, passive or active, that can detect or interfere with a radar, laser, or other device used to measure the speed of motor vehicles; or

(B) Advertising, promoting, selling, or offering for sale any radar jamming device that includes any active or passive device, instrument, mechanism, or equipment that interferes with, disrupts, or scrambles the radar or laser that is used by law enforcement agencies and officers to measure the speed of motor vehicles;

SECTION 3. Tennessee Code Annotated, Section 47-18-108, is amended by adding the following as a new subsection:

(d) In any action brought by the attorney general and reporter under subsection (a), the attorney general and reporter is deemed to lack possession, custody, or control over documents possessed by the general assembly, other state officers, or any state

agencies or institutions. If such an action is asserted on behalf of a political subdivision or agency, then the attorney general and reporter may facilitate nonparty discovery from that political subdivision or agency as an instrumentality with an interest in the litigation consistent with § 8-6-109.

SECTION 4. Tennessee Code Annotated, Section 47-18-111(a)(2), is amended by deleting the language "on behalf of others without notification" and substituting "on behalf of others and where the claim concerns the underlying published content's violation of this part, without notification".

SECTION 5. Tennessee Code Annotated, Section 47-25-106(a), is amended by deleting the language "may sue for and recover" and substituting "may individually sue for and recover".

SECTION 6. Tennessee Code Annotated, Section 47-50-121, is amended by adding the following as a new subsection:

(e) A violation of this section is a violation of the Tennessee Consumer Protection Act of 1977, compiled in chapter 18, part 1 of this title. A violation of this section constitutes an unfair or deceptive act or practice affecting trade or commerce and is subject to the penalties and remedies as provided in the Tennessee Consumer Protection Act of 1977.

SECTION 7. Tennessee Code Annotated, Section 47-18-104(b), is amended by adding the following as a new subdivision:

() Violating § 47-50-121;

SECTION 8. Tennessee Code Annotated, Section 47-18-104(b), is amended by adding the following as a new subdivision:

() Advertising, promoting, selling, or offering for sale a good or service that is illegal or unlawful to sell in this state;

SECTION 9. Tennessee Code Annotated, Section 47-18-3302(3)(B), is amended by deleting the language "or data generated from a photograph or video or audio recording".

SECTION 10. If any provision of this act or the application of any provision of this act to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 11. SECTIONS 1, 6, 7, and 9 take effect July 1, 2026, the public welfare requiring it. All remaining sections take effect upon becoming a law, the public welfare requiring it, and apply retroactively to causes of action arising prior to this act's taking effect and to pending litigation.